

Kumari M Mythri vs Sri R Muniraju on 21 October, 2011

Author: Jawad Rahim

Bench: Jawad Rahim

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IN THE HEGH COURT OF KARNATAKA AT BANGALORE
DATED THIS THE 21" DAY OF OCTOBER 2011

BEFORE

THE HONBLE MRJUSTICE 3AWAD R_A_H_'I'M< _

C.R.P. NO. 234/2010

BETWEEN:

KUMARI MMYTHRI .

AGED ABOUT 17 YEARS-,._ '*~._

SINCE MINOR REPRESENTED

BY HER MOTHERAND b!AT1JF?.-AVVL»EA
GUARDIAN SMT.A';'3r1N::3DA.
D/O K.V.ANJENAYAPPA',T._V.7'

AGED ABOUT 39)fEARs,_ V
R/A No,1.041/2, T1LAT<A:AGAR, ~ A
OPP: sARA;;TH:c-:,1:\=;{:C

sAARJATPUR'A:RoAD,A ' '
TVVATTIBELE, AN EKAL}
'PIN. ~'~ 56'2.'1.07
- - PETITTONER
(Es?\$R1,VG0uT*Aa~A_-RAJESWAR, ADV.,)

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A. VS<;€«C2».E';AM;A1AH,
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Rx?'-; TA:TE3,1@41;1, TEE.A\$<\$\5AGARf
QEEv;" '\$ARATHI CLINEQ;
'~ VSAZREAPUR RQAEe,
,fix\$"\$IB%iE_, A?xEES<R\$_,_;
@E\$'«\$ «A 5%: :0?

"T2? E,E\5AGARA3i}

S/Q LATE CHIKKAVEERAPPA REBDY

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AGED ABOUT 55 YEARS,
R/O YAMARE VILLAGE,
SARJAPUR HOBLI,
ANEKAL TALUK,

PIN W 562 125

NEsPDNDEN'Ts'.._"H.

(BY SR1 H.N.PRAKASH 8: SR1 H.MAN3uNATN;_A-Dspisgg

FOR R1)

THIS CRP FILED U/S 115 R/W SW48 A.IITTD.IN,ARDS Afft'--«..

AND S--8(5) HINDU MINORITY AN-D" 'G'uARDIANsN'IP'A--CT,?»3
AGAUBST TGE IRDER DATED 03.=10.2.G09 PA'SSED=.IN__ G,.8I

w.C.No.5/2009 ON THE FILE OF'-._THE 'C.I\.«<II., 3LjD.GE._
(sR.DN) AND IMEC, ANEKAL,' A_LLLOWING THETETITDN UJS
8(2) OF THE HINDU ¥V!INORIT_Y*~._Al\id C\$.UAF\$DIAi'%,SH'IP ACT"

TO PERMIT THE FATHER AND NATURAL GUARDIAN OF THE
PETITIONER To ALIENATE THE-'SCH-»E.DuLE"I>.RDPERTY IN
FAVOUR OF INTENDING f?UF?.CHASER, AND THE SAID
ALIENATIDN IS FOR T_1HE'I..E3ENEF'IT».V'OF THE MINOR
PETITIONER. 2 ..

This cDm\$it_g' oIT AfV€) I" ?i€'€:iE'iFlg this day, the

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WgVfwDADER

..i\!'iIIoT" vsfhcsé pfogfiérty has been Eiquidated purporting

gE5.E.,I5'si.._II~.nd'e.r t?:e fié'r'TTIission ef the court has assaéied the

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 consequent to which Vinoda fired a petition under Section
 13(1)(a) of the Hindu Marriage Act for divorce. She
 succeeded in obtaining divorce by order dated 1.3.2005 as

evidenced from the proceedings in M.C.14/99. 'V

b) Subsequently it appears as per the wedding ceremony
 witnesses, 13* respondents in the marriage ceremony

gifting immovable property to the respondent as follows: S.6,

Khanumari 776 formed a trust for the benefit of the respondent and
 384/2 in favour of his 'd..a:7:;;r-ghi:-erm;2.ei:itier2'e«re 'hereir': and under
 the deed, appointed Vinod as the guardian to be the

guardian.

C) gift of the property to the respondent, possession was obtained

and the respondent became the absolute owner of the said

property. A. The father of the respondent, all the related parties were

present at the time of the gift ceremony. The respondent, 3: reeederii:

family of the respondent, the respondent's age is seeking evidence, but

it is not clear from the evidence

d} Some of the respondents, he filed Q &

"':.ire,3;ee imreidrig Section 13(1)(a) of the Hindu Marriage Act and

in
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 7;?--. //

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E/'J

Guardianship Act, 1956, seeking permission to set the
property referred to above gifted in favour of the

He brought no person into the party array. _

was ordered in SAMYUKTA E<ARNATAK_AV---.f\$jl}: 't)3VES0 tied A

22.4.2009 showing posting of the petitioner

The fact of publication of notice was not

petitioner or her guardian.

6:) On 2.7.2009; the Case ex parte
and produced' 55 the teamed trial
judge dated 3.10.2009
permitted him. Armed with the
said property for Rs.5,30,000/- in

favour of the V25V". The deed under a deed of sale dated

20.11.2000. The respondent get the records before the

as stated in the name and thereafter as:

See the records to the 33 respondents

. The site: 5% of Rs.5,30,000/-, Agreed by the ES:

the deed; the deed of Rs.5,30,000/-

6

4. Therefore, it is necessary to examine whether the
court could have granted such permission, and if not

were the duties of the guardian. The answer

the negative for the reason Section 8 of

and Guardianship Act provides

8. Powers of nature! guardian. (1) 'The guardian of a Hindu who has power to do the
the provisions of this Section do not apply to the
are necessary or for the benefit of the
benefit of the guardian, but the
guardian of a Hindu who has power to do the
the provisions of this Section do not apply to the
are necessary or for the benefit of the
benefit of the guardian, but the
guardian of a Hindu who has power to do the

percéioieer---to've'tie:n'tg:--.,_ "ii " V
(2) _3'Ahe_--vVeeettefe:.<V:gtierdia--n shall not, wittieet the
Vviereeioius ;set'm\$S'si:\$re---.ofV..tt:e court mortgage
'V {»3,}_V triiiottgage or charge; or transfer by gale;
a;gift;-- A. e><ci;2e'r%'g'e'V er otherwiee, any eert of the

~_virr:r's:<::;4;%a_bEe ereeetty ef the rééeer, er"

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item: exceeéég five yeezre at fer tetra; exteedéog
":'ee;"e than erze 'gear eegsee the date or: eshéee the

mtee? wit: etteée mejetétga

"?'
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(3) Any disposal of imrnovabie property by the
natural guardian, in contravention of sub~seci:éon"'----.

(1) or subsection (2), is voidable at the instance'

the minor or any person claiming under him._j"" " '

(4) No court shall grant perm_i;~3s.%n.n to
guardian to do any of the acte rn:e.otione'd.' A'

section (,2) except in cases of rieclessity or_"_for"tlie ' '

evident advantage of the nfinog'.

(5) The C3uardians~..__and_fVnlniarrcis 189d, 'shall
apply to an in "4respec't.__ieVf:v aiyapplicatien for
obtaining the perm-iesion 'o-fine".cec;%tv.."Q.néer sub-
section ;~i('2'};.L."in all ~:a's._.lf5 ii: were an
appligatill/3n)fer-':ebtain.ing~.the p'e:rrn.ission of the Cour':
under-Vgeetian 25; of arid in particular-

lllll invlmconnectéen with the
a--pp\$icator\$V"siaa\$l=,oes...:ci'een}ed to be proceedings

under i:natV';'%ct".i2v\$t\$iii'i"n. the meaning of Section 4~A

A. -- thereof,

{bi}):V5€3'v~\$'3'L;\$V\$'t snail ebserve te pmceaere and

nla'\$re--.%{ne power spécéfiee in sobwsections {2},{3}

it 'an<:i.l.l.{ii»\$"e€.18ectien 3: ef that Act; aria

''{c} an appeal snali iie tram an Greer ef the
man refusing pernrneaie ie the naterai guardian to
as any er" the aeta rrsenierzed in se'p~»secé:ie'n:{2'; at
A this aetier: ion awe eoert te wnécn appeals araéeanly
iée from the aeciséens ef 'mat ceert.

(6) In this section "court" means tne city civil court

or a district court or a court empowered
Section 4-/A of the Guardians and Wards Act,
within the iocai limits of whase jurisdiction" H
irnrnevable property in respect cf fm'h'\$'c\$'f:'_V.gnéw
appiication is made is situate, Qlfidii.
immovable Dmilerifif E5 siti»'\$i:b\$*:2' withifl. "the" DV
jurisdiction at more thai%i__é'3n.e such :cnn_rt;.:vrriVe'ensVV
the court within the limite'-.Q_ufi":wh:f:gse

jurisdiction any poitieh 0f.V't'h'e*,:\$r\$3pé.*ty is sittiategi'
S. The mandate of \$eVctE_<V3e"\$ fun-ci.e'u5Vter\$~ly is to protect
the interest miinor, "his"'ve:\$t:éte....afhd to permit oniy

such acts \$'§or.:.i:1si;s'i'iEtenéréltf\$nd.r@255 may safeguard his

estate:*--__ the 13' respondent

n1isrepresent%ii:gx'tifie't._ he is the father and naturai g:g3'r':£ieh', \$i&ed:i:E1e.,___;9;et~ité@n
under Section 8(2) er the Hindu ' i.'}fiEr29ri*tyj"eafiti""{3Lserdienship Act eeking eerméesien te
seii t'he"Vi\$pre\$e'--rj:jQA'eI=eiiiftee te his eeeghter, ene the tréei ceert w\$thc.;tstA.Ve><emEning
whether cércernetances enumerated in V' Sieiltztriéen□2% ef the nct have eeee rneée eat; greetee
Awggernieeien and straightaway ereceedee te eeeint him as 5"', 131g 1! ./ / 3:

guardian. Armed with that order, the 1" respondent had Eiquidated the property of
the minor petitéener.

6. It is atso interesting to note that the 3eained»._4:'tr.E_e! judge straightaway
proceeded to grant permiss%'e'n--«'.,te_J:

the property without imposing any condo:-t»iriéj,..:e3{zen circumstances so
warranted. The5=__erc_1er. Impu.'gr1'ed"patsee;d.A by the learned tréai judge ts:
not EVhe.V_confer:"n't€ty~ttie provisions of Section 8 of'Vt4t""tt\$e
.uHEr1"tf1'a;,:ittvtinevjgity and Guardianship Act. p;rtrr;~\$.s3,te'n_granted was te
alienate for the._ beneAfi.t...:'e'f. ttxeg ';Th:::s, the 1" respor:.dent'_'?§'ae_;

::E:ree't_er_ d-eeign, first created a sale in favour er jeggzmfréstpoeearrt~'aas free': him get the eroperty' transferred ute..,vhé'sv.eae*:etv.Zt bears testérrmmf te his eénéster °=e;e\$î*rgr1?eff eferzeiveetee between him and 2" reeeenderrt te t--..tVt:.e the rreer. Safety it eee be eee there is c\$e'e__r ;fer%:fVE\$î'et er' interest eetweee the rreer eee :5? reeeerteeet eee the teat eeert eeeéd eexze eeticee it rather " ..tE":-eetréeeeee it te greet eerreéeeieeg The ireeeeee erefer; □zerefereg is te be Set eeieea

7. Besides, as the order has been obtained by the 15* respondent on misrepresentation and he has indugeci in acts covered by sub--section (3) of Section 8 of tiiet' Minority and Guardianship Act, aii transactions':.iiavv.eV' "

heici voidable at the instance CV)-f""iZi'i'€3.'FY'ti_i;3OEf;,"fVSçî'i'iVCe.'_:'\$hé.V' it minor in this petition is chaiengihe'.tne_A_saidiit:'ans'actie.n«hit:_ by sub-section (3) of Sectioni:]8,A» ithnas that " ' disposal of the immovable prot\$gertg\$----by~-the 1i*';*es;3vi\$ndent is in contravention of subisectioov sub~section (3) of Section I»i:ii'i*iority«~:.'i'nd Guardianship Act, and the're'fo_re,- i'ro':_}:i__.;' ii'

8. iiatie icii%ciii?i*i;:i?:aifi_:cie:.<;:,ufchhe if' ?€S\$3o%?'3dei'ii is directed to acc_oi,iiit"Eorthe'Vii'iAo«rfii'e\$g"iii*ecei\ed? if any, on behalf of the i\$:i:ti:Eit_o tEiEV'i*ty-----sieve from today ens restoie oreperieg sizanes eiIowed in terms of this oreeliz saw is s